EXHIBIT D

DECEMBER 23, 2025 90-DAY LEASE TERMINATION NOTICE WITHOUT CAUSE

Exhibit D Cover Sheet

IN THE CLACKAMAS COUNTY JUSTICE COURT
STATE OF OREGON

HOUSING AUTHORITY OF CLACKAMAS COUNTY,
Plaintiff,

v.

BENJAMIN JAY BARBER and JANE KAY CORTEZ,
Defendants.

Case No. 26FE0586

Exhibit Information

- Exhibit Number: Exhibit D
- Exhibit Title: December 23, 2025 90-Day Lease Termination Notice Without Cause
- Source File: evidence/paper documents/HACC 90 day notice.pdf
- Relevant Source Page(s): page 1
- Source Type: PDF

Assertion Supported

This exhibit is offered in support of the following assertion:

> HACC issued a no-cause termination notice in December 2025 while directing the household into replacement-housing paths.

Where Used In The Filing

- Filing Document: Declarations In Support Of Preliminary Injunction
- Section / Paragraph / Page: Barber declaration ¶ 4; Cortez declaration ¶ 5
- Related Motion Or Memo Quote: HACC issued late-2025 and early-2026 notices placing our housing at risk.

Why This Exhibit Matters

This exhibit matters because:

1. it is part of the core notice sequence leading into the eviction posture;
2. it supports the claim that housing pressure was occurring while relocation duties remained live; and
3. it reinforces that defendants were not simply sitting idle in the unit without a HACC-created move path.

Page Targeting Note

The key material appears at:

- Source page: 1
- Highlight / sentence / record point: the December 23, 2025 without-cause lease termination language

Assembly Note

Place this cover sheet immediately before Exhibit D in the binder.

Health, Housing & Human Services
CLACKAMAS COUNTY

Executive Director, Shannon Callahan

90 Day Lease Termination Notice without Cause

December 23, 2025

Jane Cortez
10043 SE 32nd Ave
Milwaukie, OR 97222

LEASE TERMINATION AND UNIT VACATE DATE: 03/31/2026

Sent by First Class Mail and Posted to Front Door of Unit

To: Jane Cortez and all other occupants or person(s) unknown claiming any right or interest in the Premises at 10043 SE 32nd Ave, Milwaukie, OR 97222.

This letter is a formal notice that your lease with the Housing Authority of Clackamas County ("HACC") for the residence located at the address listed above, is being terminated.

Pursuant to ORS 90.427, this no-cause lease termination notice is issued because in or about May 2026 HACC will be demolishing the building in which your housing unit is located. Your lease will be terminated on **03/31/2026**, and you must vacate your unit by **11:59 PM** on the date indicated above, which is a minimum of 90 days after delivery of this notice.

This notice is given without stated cause. You do not have a right to cure the reason for the termination. HACC need not prove the reason for the termination in court action.

Any individual with a disability who needs accommodation or assistance at any time with this notice should contact the 504 Coordinator at 503-655-8267 or email at HACC@clackamas.us or by mail at PO BOX 1310, Oregon City, OR 97045. Reasonable Accommodation forms are on our website here: https://www.clackamas.us/housingauthority/section8.html.

SUBSIDIZED RESIDENTS ONLY

HUD Disclosure: If you remain in the leased unit on the date specified for termination, we will enforce the termination only by bringing a judicial action at which time you may present a defense. You have ten (10) days within which to discuss this eviction with the Landlord. The 10-day period commences on the earlier of the day this Notice is hand-delivered to your unit or the day after it is mailed. This discussion period does not extend the date for termination. The amount of rent due was calculated as of the date of this Notice. Persons with disabilities have the right to request reasonable accommodation to participate in the hearing process.

Reasonable accommodation for persons with disabilities may include qualified sign language interpreters; readers; accessible meeting locations; attendants, as appropriate; and a native speaker if the resident is not fluent in English.

Landlord – Housing Authority of Clackamas County

Charley Skee
Housing Portfolio Manager
Office: 503-650-3439 | Cell: 971-413-8582
Email: cskee@clackamas.us | haccpm@clackamas.us

Property Management Team: 503-758-8911

NOTICE! **AVISO!** **ИЗВЕЩЕНИЕ!**

This correspondence contains very important information about your housing! If you need help understanding what this letter says, please contact 503-655-8267.

¡Esta correspondencia contiene información muy importante sobre su vivienda! Si necesita ayuda para entender lo que dice esta carta, por favor comuníquese al 503-655-8267.

Это письмо содержит очень важную информацию о вашем жилье! Если вам нужна помощь в понимании содержания этого письма, пожалуйста, позвоните по телефону 503-655-8267.